

WORK PERMIT IN CANADA

Most foreign nationals need a work permit to work in Canada.

There are 2 types of work permits.

1. Employer-specific work permit

An employer-specific work permit lets you work in Canada according to the conditions on your work permit, such as

- the name of the specific employer you can work for
- how long you can work
- the location where you can work (if applicable)

Before you apply for an employer-specific work permit, your employer must give you

- a copy of your employment contract
- 1 of the following:
 - a copy of a labour market impact assessment (LMIA)
 - an offer of employment number (for LMIA-exempt workers): To get this number, your employer must use the Employer Portal.

If your employer doesn't need to use the Employer Portal

If your employer does not need to use the Employer Portal to submit an offer of employment, they must give you a copy of the employment contract.

2. Open work permit

- An open work permit lets you work for any employer in Canada, except for one that regularly offers striptease, erotic dance, escort services or erotic massages. You can only get an open work permit in specific situations.

Some jobs require a medical exam. If you don't want medical conditions on your open work permit, you can get a medical exam from a panel physician.

Who can Apply

Eligibility requirements for all applicants

There are specific requirements you need to meet depending on where you are when you apply for your work permit.

But regardless of where you apply or which type of work permit you apply for, you must

- prove to an officer that you will leave Canada when your work permit expires;
- show that you have enough money to take care of yourself and your family members during your stay in Canada and to return home;
- obey the law and have no record of criminal activity (we may ask you to give us a police clearance certificate);
- not be a danger to Canada's security;
- be in good health and have a medical exam, if needed;
- not plan to work for an employer listed with the status "ineligible" on the list of employers who failed to comply with the conditions;
- not plan to work for an employer who, on a regular basis, offers striptease, erotic dance, escort services or erotic massages; and
- give the officer any other documents they ask for to prove you can enter the country.

How to Apply

1. Apply online for a work permit

You must apply online for a work permit.

Who's eligible to apply on paper:- You're only eligible to apply on paper if you

- have a disability that prevents you from applying online

- are applying under the Seasonal Agricultural Worker Program
- hold an identity or travel document for non-national residents, refugees or stateless persons.

Online applications from India

Before you apply online, make sure you have:

- the instruction guide to fill out the forms
- visa office requirements for applicants in India (PDF, 296 KB)
- a scanner or camera
- a valid credit or debit card

Depending on your situation, you may need to submit Statutory Declaration of Common-Law Union [IMM 5409] (PDF, 637 KB)

Biometrics fee: You may need to give your biometrics for this permit. If you need to give biometrics, pay the biometrics fee when you apply. The fee covers the cost of collecting fingerprints and a digital photo.

Extend the validity of your biometrics

We can't issue a visa or permit longer than 10 years from the last date you gave your biometrics. If you want a visa or permit for a longer period of time, you can choose to give your biometrics again when you apply, even if they're still valid.

Follow these steps when you apply for your visa or permit:

1. Pay the biometrics fee when you apply.
2. Wait for your biometric instruction letter (BIL). You must use the BIL that was issued for this application.
3. Book an appointment and visit an official biometric collection location to give your biometrics again.

You need an account to apply online. Use it to pay your fees, check your status and extend your permit.

After you Apply

- Your fingerprints and photo (biometrics):-Book your biometrics collection appointment as soon as you can to avoid processing delays.
- Processing time:-Varies by country

How we process your application

We'll check your application to make sure you have all the necessary documents, including biometrics.

If it's incomplete, we'll return your application without processing it.

An officer will also check

- the list of employers who failed to comply with the conditions to make sure that the employer can hire you, and
- that you qualify for a work permit

We may also ask you to

- go to an interview with our officials in your country, or
- send more information or documents

Our online application system uses coordinated universal time (UTC). If we ask you to upload documents in your account, you must submit them before midnight UTC on the date the officer gives you. Make sure you know the difference between your local time and UTC.

You might need a medical exam to enter Canada. If you do, an officer will tell you and will send you instructions on what to do. A medical exam can add over 3 months to the time it takes us to process your application.

If your work permit application is approved

You'll get an approval letter that says you're allowed to work in Canada. This letter is called the port of entry letter of introduction.

You should bring this letter with you when you travel to Canada and present it at the port of entry. This letter is not your work permit.

You'll only get your work permit at the port of entry the day you arrive in Canada.

The work permit will outline

- the type of work you can do
- the employer you can work for
- where you can work
- how long you can work

Prepare for arrival

1.Prepare your documents

When you arrive in Canada, you must have

- your passport
- your visitor visa (if you need one)
- any travel document(s) you're carrying

You may also need to show proof that your work permit application was approved. One way to do this is to show the border services officer your port of entry letter of introduction. You'll get this letter if you

- applied online or
- gave us an email address in the work permit application form for communicating with you

You can print this letter or bring an electronic version with you.

You should also bring supporting documents, such as

- proof that you meet the requirements of the job, such as proof of work experience and education
- a copy of your employer's positive labour market impact assessment (LMIA), if required
 - You'll also need a copy of your attestation of issuance of your Quebec Acceptance Certificate (CAQ), if your employer needed an LMIA and you'll work in Quebec.
- the offer of employment number your employer received when they submitted the offer of employment through the Employer Portal (if you are LMIA exempt and coming to work for a specific employer)

When you arrive in Canada

We check your identity

We check your identity to make sure that you're the same person who was approved to travel to Canada.

- If you enter Canada at certain Canadian airports
 - your fingerprints will be checked automatically at a primary inspection kiosk
 - the system will check your identity against the information collected when your application was submitted
- If you enter Canada at smaller airports and all land ports of entry
 - your fingerprints may be checked if we refer you to a secondary inspection, where a border services officer will use a fingerprint verification device to check your fingerprints

You talk to the border services officer

Tell the border services officer that you have come here to work and show the documents you brought with you.

You won't be allowed into Canada if you give false or incomplete information.

You must also

- convince the officer that
 - you meet Canada's entry requirements
 - you'll leave Canada at the end of your approved stay

- have valid immigration medical exam results (if you needed an exam)
 - Your results must be valid the day you enter Canada.
 - You need to get another medical exam if your results will expire before you enter Canada.

The officer makes the final decision to issue you a work permit and allow you to enter Canada.

We print your work permit

Once the border services officer has checked your documents and confirms that you can enter Canada, the officer will print the actual work permit for you. If you have questions, or there's a mistake on your work permit, ask the officer before you leave.

Your passport must be valid for longer than the time you plan to be in Canada. Your work permit won't be valid beyond your passport's expiry date. This does not apply to citizens of the United States who show a valid United States passport to the border services officer.

When you start working

Understand the conditions on your permit

Read your work permit carefully. It sets out all the conditions for working in Canada. If you don't meet those conditions, you could be asked to leave Canada.

You can also apply to change the conditions of your work permit or apply to extend the permit.

If you choose to study while you work

You may be eligible to study without a study permit while you work.

To be eligible, you must

- be authorized to work in Canada with either
 - a valid work permit that you applied for on or before June 7, 2023, or
 - a letter authorizing you to work while we process your work permit extension application that was submitted on or before June 7, 2023
- satisfy the terms and conditions of your work permit—except any conditions related to studying

Find out if you're eligible for this measure.

Get a social insurance number

The social insurance number (SIN) is a 9-digit number that you'll need to

- work in Canada
- access government programs and benefits

Apply for a SIN as soon as possible after you arrive in Canada.

How to get a SIN

You should apply online to either

- submit a SIN application for the first time, or
- update your existing SIN
 - You can update the expiry date listed on your SIN or update your status in Canada.

You can also apply in person at a Service Canada Centre or by mail, but it may take longer than applying online.

Canada's labour laws

As a temporary foreign worker, you are protected by Canada's labour laws.

Your employer

- must pay you for your work
- must make sure that your workplace is safe
- can't take your passport or work permit away from you

Each province and territory has an employment or labour standards office that deals with labour and employment laws. They can talk to you about fair pay, hours of work, rest periods and working conditions, and provide other services as well.

Most occupations are covered under provincial and territorial laws. However, federal labour and employment laws may apply if you work for

- the federal government
- a bank
- a company that transports goods between provinces
- a telecommunications company
- most businesses owned and run by the federal government

Employment agreements

If you have an employer-specific work permit, your employer must give you an employment agreement. You and your employer must sign the agreement, which should include

- the details of your job
- the conditions of your employment
- the highest number of hours you will work in a week
- how much you will be paid for your work

The laws on hours of work and overtime (extra time or time worked after regular hours) depend on the province or territory you are working in.

Your agreement may also have details about any money coming out of your pay for programs like the Canada Pension Plan and Employment Insurance.

Always keep a copy of your agreement for your records. You and your employer must always follow the agreement. If you disagree about work details in the future, having a copy may help you.

Contact your local employment or labour standards office to learn more about employment contracts.

If you lose your job

In most cases, your employer needs to give you written notice before your last day of work or pay you for that time instead. This is called termination pay.

Your employer does not have to warn you when you are being let go for a “just cause.” For example, you can be let go for serious misconduct or missing work without a good reason.

If you have a contract for a specific period or a specific job, your employer does not have to give you notice when your contract ends.

The rules about notice of termination are also set by each province and territory.

If your employer does not follow the law when they dismiss you, you can complain to the local employment or labour standards office. If you are covered by a union contract, you may have to make a formal complaint through the union instead.

Housing

Your employer does not have to give you a place to live unless you are a temporary farm worker in the Seasonal Agricultural Worker Program.

If you are given room and board, your employer may take part of the cost from your pay. In most provinces, the amount they can charge for meals and board is limited. All pay deductions must be noted in your contract.

Health and safety

All workers in Canada have the right to a safe and healthy workplace. There are laws to protect workers from danger.

Provincial, territorial and federal governments each have their own laws and ways of looking into health and safety matters.

Is your work safe?

To help you decide if your workplace is safe, ask yourself:

- Have I been properly trained for the job I am doing?
- Have I been given the right safety equipment to do the job?

- Do I feel unsafe when doing my job?
- Do I work close to dangerous materials?

To report an unsafe workplace, contact your local employment or labour standards office.

Refusing dangerous work

Your employer cannot force you to do work that's dangerous. Your employer must look into any danger that's reported in the workplace. You have the right to refuse to do the work until

- you and your employer agree that the danger is removed
- you feel the problem no longer exists
- a government official tells you that it is safe to do the work

If you get sick or hurt at work

Tell your supervisor as soon as possible and get medical attention. Your employer must give you access to a health care provider (like a doctor, nurse or pharmacist) by, for example

- giving you time off to seek medical attention
- making a phone available to call emergency services (ambulance)
- giving you information on how to get health care
- helping you get to the health care provider

You can speak privately with a health care provider, without your employer.

Most provinces and territories provide workers' compensation benefits. Workers' compensation plans give you help (medical or wage benefits) if you are hurt on the job or if your job causes you to get sick. Your employer is not allowed to take any money from your pay for these plans.

In some provinces and territories, employers don't need to offer you workers' compensation benefits. If so, this must be clearly written in your employment contract.

Contact your local employment or labour standards office to learn more about workers' compensation benefits.